CAUSE NO. D-1-GN-25-002857

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| ERIC ESTOPINAL | § | IN THE DISTRICT COURT OF |
| | § | |
| Plaintiff, | § | |
| | § | 419th JUDICIAL DISTRICT |
| v. | § | |
| | § | |
| A&H FOODS LLC and | § | |
| GUADALUPE TORRES | § | TRAVIS COUNTY, TEXAS |
| | § | |
| Defendants. | | |

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**PLAINTIFFS' SECOND AMENDED NOTICE OF INTENTION TO TAKE THE ORAL AND VIDEOTAPED DEPOSITION OF THE DESIGNATED REPRESENTATIVE(S) OF A&H FOODS LLC AARON WALKER IN HIS INDIVIDUAL CAPACITY AND AS CORPORATE REPRESENTATIVE**

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TAKE NOTICE, Plaintiff, by and through his counsel of record, will take the deposition of **Aaron Walker, both in his individual capacity and as the Corporate Representative of A&H Foods LLC**, on December 18, 2025, beginning at 10:00 a.m. (CST), and continuing from day to day until completed. The deposition will take place in person. The deposition will occur at Pappas Grubbs Price, PC located at 7500 Rialto Boulevard Building 2 Suite 250 Austin, Texas 78735. This deposition is intended for the purposes of discovery, evidence, and/or use at trial, or for such other purposes as permitted under applicable and governing rules. The court reporting firm will be SA Legal Solutions. The deposition will be taken before a Notary Public or some other officer authorized by law to administer oaths for use at the trial herein. The deposition

will be videotaped and stenographically recorded. The transcript and videotaped portions of the deposition will be used throughout the case, including trial.

Per Texas Rule of Civil Procedure 199.2(b)(1), you must designate one or more individuals to testify on each of the following topics and must provide the designated person(s) name(s) a reasonable time before the deposition. The person(s) designated must come prepared to testify concerning "matters that are known or reasonably available to the organization." Rule 199.2(b)(1), formerly Rule 201(4), "is patterned after Federal Rule of Civil Procedure 30(b)(6), which has been consistently construed to require that a corporation 'must not only produce such number of persons as will satisfy the request, but more importantly, prepare them so that they may give complete, knowledgeable, and binding answers on behalf of the corporation.'" *In re FINA Oil & Chem. Co.*, No. 13-98-640-CV, 1999 WL 33589153, at *4 (Tex. App.—Corpus Christi Mar. 11, 1999, orig. proceeding); *see also In re Family Dollar Stores of Texas, LLC*, No. 04-14-00656-CV, 2015 WL 1938662, at *2 (Tex. App.—San Antonio Apr. 29, 2015) (noting that the obligation is not to present the most knowledgeable person and is instead to present a person "reasonably prepared to address the subject matters designated in the notice").

Please be advised that if you fail to prepare your designated witness(es) on the topics below, we reserve the right to demand that you produce another witness to provide the requested testimony, seek reimbursement of expenses we incurred in connection with this deposition and any subsequent deposition necessitated,

and/or request summary judgment or partial summary judgment from the Court as appropriate. The topics are as follows, beginning on the following page.

## I. THE INCIDENT

1. A&H Foods, LLC's knowledge of the facts, timeline, and causes of the motor vehicle collision occurring January 6, 2025, in Austin, Texas in which Eric Estopinal was injured.
2. The identity, roles, and responsibilities of all A&H Foods, LLC employees present at site of the motor vehicle collision including but not limited to Guadalupe Torres.
3. The job duties, crew assignment, and scope of work Guadalupe Torres was performing at the time of the incident, and the supervision, direction, or instruction he was under.
4. The work being performed at the time of the collision, including but not limited to any bill of lading, Guadalupe Torres' route on the date of the collision, and A&H Foods, LLC's involvement in the use, handling, inspection, or operation of the commercial vehicle bearing Texas license plate number, SLL0676, that Mr. Torres was operating.
5. The hiring, qualification and training processes for Guadalupe Torres, including the methods used to verify driver proficiency and compliance with
6. The processes, procedures, policies, or internal checklists used by A&H Foods, LLC to train its employees, including Guadalupe Torres.
7. The identity and role of any A&H Foods, LLC personnel responsible for authorizing Mr. Torres to operate the commercial vehicle on January 6, 2025.
8. Any known defects, malfunctions, or performance issues relating to the commercial motor vehicle that was operated by Mr. Torres at the time of the collision, including any prior reports, complaints, maintenance records, or safety concerns raised before the date of the collision, including the receipt and review of any alerts, inspection reports, or communications from third-party maintenance providers regarding the vehicle.
9. The processes, procedures, policies, or internal checklists used by A&H Foods, LLC to assure compliance with the federal motor carrier safety act, Texas regulations, and Texas laws regarding the operation of commercial motor vehicles.
10. Training provided to employees, including Guadalupe Torres, relating to the federal motor carrier safety act, Texas regulations, and Texas laws regarding the operation of commercial motor vehicles.

## II. POST-INCIDENT RESPONSE

11. A&H Foods, LLC's internal investigation into the collision, including: a. The identity of personnel or departments involved in the investigation; b. The preparation and findings of any post-incident reports; c. Root cause analysis summaries, corrective action plans, or safety memos issued; d. Any discipline,

termination, or retraining of employees following the incident; and e. Any formal or informal communications within the company regarding the incident.

12. A&H Foods, LLC's knowledge of any third-party investigations into the incident, including those conducted by OSHA, or local law enforcement.
13. Any governmental investigations, citations, or communications involving OSHA or Texas state agencies related to the January 6, 2025, collision.
14. All changes implemented by A&H Foods, LLC after the collision, including updates to safety policies or training enhancements.

## III. PRIOR INCIDENTS

15. A list of all "DOT Recordable" accidents (as defined by 49 C.F.R. § 390.5) involving any A&H Foods, LLC commercial motor vehicle occurring within the past seven (7) years, and the company's internal review or investigation of each.
16. The prior incidents identified in A&H's answers to interrogatories.
17. Any prior claims, lawsuits, OSHA reports, or internal incident records involving A&H Foods, LLC's motor vehicles causing injury or property damage within the last ten years.
18. The facts and circumstances surrounding any major loss event involving an A&H Foods, LLC vehicle within the last ten years, defined as any incident resulting in a total loss of a company vehicle.
19. All 'reportable accidents' as defined by the Federal Motor Carrier Safety Administration (FMCSA) involving A&H Foods, LLC vehicles recorded in the past ten years, and the company's corrective actions regarding same.

## IV. POLICIES AND PROCEDURES

20. A&H Foods, LLC's written safety manuals, job procedures, and policies applicable to operation of a work vehicle and/or commercial motor vehicle in place as of January 2025.
21. The training and onboarding A&H Foods, LLC provides to employees operating work vehicles and/or commercial motor vehicles, including Guadalupe Torres.
22. A&H Foods, LLC's policies for incident reporting, internal investigations, and corrective actions following near-misses or safety events.
23. The involvement of A&H Foods, LLC's Health, Safety, and Environmental (HSE) personnel in monitoring, inspecting, or responding to motor vehicle collisions.
24. A&H Foods, LLC's written safety manuals, job procedures, and policies applicable to fatigued driving that were in place as of January 2025.
25. A&H Foods, LLC's written safety manuals, job procedures, and policies applicable to vetting drivers and performing background and driving history checks as of January 2025.
26. The historical data, safety audits, or past incident evaluations relied upon by A&H Foods, LLC to develop the safety training and accident prevention policies in effect today.

## V. RELATIONSHIPS AND COMMUNCATIONS

27. A&H Foods, LLC's contractual and operational relationship with AH1 Holdings, including scope of work, safety responsibilities, indemnity clauses, and division of authority of operations.
28. A&H Foods, LLC's contractual and operational relationship with A-A1 Food Service, including scope of work, safety responsibilities, indemnity clauses, and division of authority of operations.
29. A&H Foods, LLC's contractual and operational relationship with A-A1 Foods, including scope of work, safety responsibilities, indemnity clauses, and division of authority of operations.
30. A&H Foods, LLC's contractual and operational relationship with Penske, including scope of work, safety responsibilities, indemnity clauses, and division of authority of operations.
31. Communications between A&H Foods, LLC and AH1 Holdings (and any of their representatives, directors, members, officers or agents) regarding the January 6, 2025, collision.
32. Communications between A&H Foods, LLC and A-A1 Food Service (and any of their representatives, directors, members, officers or agents) regarding the January 6, 2025, collision.
33. Communications between A&H Foods, LLC and A-A1 Foods (and any of their representatives, directors, members, officers or agents) regarding the January 6, 2025, collision.
34. A&H Foods, LLC's communications with any third parties—including communications by AH1 Holdings, A-A1 Food Service, A-A1 Foods, or others—concerning the January 6, 2025, collision, or in response to the January 6, 2025, collision.

## VI. MISCELLANEOUS

35. The existence and details of any insurance policies applicable to the January 6, 2025, incident, including carriers, limits, and any claims or notices submitted.
36. A&H Foods, LLC's document retention policy and litigation hold procedures, including the date of implementation following the incident and the categories of information preserved.
37. The existence, contents, and location of any documents, photographs, electronically stored information, or physical evidence A&H Foods, LLC maintains in response to Plaintiff's discovery requests.
38. The factual and legal basis of any affirmative defenses asserted by A&H Foods, LLC in this matter, including but not limited to the general denial or comparative fault defenses, if any.
39. Investigation into the collision of January 6, 2025 involving Mr. Estopinal, including the participants of the preventability assessment, if any, the steps

involved in that assessment and the reason for including the participants in that assessment, if any.

40. Documents produced in discovery (excluding medical records and bills).
41. Training given to Guadalupe Torres regarding operation of the commercial vehicle bearing Texas license plate number, SLL0676.
42. A&H Foods, LLC's policies, procedures and practices as it relates to operation of commercial motor vehicles and/or work vehicles.
43. The personnel file, employment history, and employment duties of Guadalupe Torres.
44. A&H Foods, LLC's policies, procedures, and practices for providing handbooks and training materials to employees who only read, write, and speak Spanish.
45. The existence, preservation, and analysis of any electronic data related to the subject vehicle and driver, including but not limited to: (a) GPS or telematics data; (b) Engine Control Module (ECM) or "Black Box" data; (c) Dash camera or in-cab video footage; and (d) cellular telephone usage data.
46. A&H Foods, LLC's corporate structure, including its relationship with any parent companies, subsidiaries, or affiliates regarding asset ownership and operational control.
47. A&H Foods, LLC's current net worth, including but not limited to financial statements, balance sheets, cash on hand, and assets available to satisfy a judgment in this case in excess of insurance policy limits.

You are invited to attend and participate as you deem proper.

**DATE: December 1, 2025**

Respectfully submitted,

*/s/ Taylor M. Hunter*

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**ATTORNEYS FOR PLAINTIFF**

**CERTIFICATE OF SERVICE**

I hereby certify that I have served a true and correct copy of this pleading electronically on all parties through their counsel of record on December 1, 2025.

*/s/Taylor M. Hunter*
Taylor M. Hunter